

26PR00234 Matter of Socorro Perez Family Trust

County: santa-barbara

Division: Trust

Hearing date: 2026-06-17

Motion: Petition for Internal Affairs

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Tentative Ruling: Matter of Socorro Perez Family Trust

Case Number

26PR00234

Case Type

Trust

Hearing Date / Time

Wed, 06/17/2026 - 09:30

Nature of Proceedings

Petition for Internal Affairs

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Further briefing. Petitioner does not appear to have standing pursuant to Probate Code section 17200(a), and our Supreme Court's interpretation of "trustee or beneficiary" in that subdivision, or its definitions in Probate Code section 24. (Barefoot v. Jennings (2020) 8 Cal.5th 822, 827.) Petitioner admittedly has no interest in the subject trust, because petitioner is the ex spouse of deceased settlor, and is nowhere listed as a beneficiary of the trust. Thus, any liability the Petitioner owes to the decedent's estate or trust was already determined in the dissolution matter (case no. 22FL00805) and is a vested debt owed to the decedent's estate or trust, whether or not the trust is valid.

Petitioner must file a memorandum of points and authorities outlining specifically how Petitioner has standing under section 17200(a) as a "trustee or beneficiary," and the discussion must contemplate the precedent of Barefoot v. Jennings (2020) 8 Cal.5th 822:

Reading the Probate Code section consistent with the statutory scheme as a whole, and examining the statutory language to give it commonsense meaning, we conclude that claims that trust provisions or amendments are the product of incompetence, undue influence, or fraud, as is alleged here, should be decided by the probate court, if the invalidity of those provisions or amendments would render the challenger a beneficiary of the trust.

(Id. at p. 828.)

Any Respondents desirous to object to the Petition, must file a written objection before the hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Denise M. Hippach

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